HEADNOTE

"1. R. 9.3 (a) of the Rules of Procedure authorises the Court to extend time periods. However, this possibility should only be used with caution and only in justified exceptional cases.

2. Such an exceptional case regularly exists if access to a pleading in the unredacted version was initially restricted to the representatives due to an application for protection of confidential information (R. 262A RoP). The only way to ensure that the party concerned can exchange information with its representatives, develop a strategy taking into account the arguments of the other party and, where necessary, provide technical and/or economic input, is to grant access to the information in question to the party's employees with the relevant knowledge.

3. The Rules of Procedure provide for a time period of two months for the filing of the Reply to the Statement of defence which includes a Counterclaim for revocation (R. 29 (a) RoP). This time period must be available to the claimant and its representatives in order to jointly develop a defence strategy based on all the facts and to file pleadings on the basis of that strategy. Therefore, an extension of the time period is, in principle, granted upon request.

4. The same applies to the Counterclaim for revocation. The principles of due process and the right to be heard require that a party must be able to reconcile its arguments on (non)-infringement with those on validity and possible amendment of the claims, in particular in its first submission on validity."

COURT
Local Division in Düsseldorf

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 594 009 B1

Lithographic printing plate original plate, and method for producing lithographic printing plate

KEYWORDS
Extension of a time period
R. 262A – Application
limited access

Rule 9 Powers of the Court

SUMMARY

The Local Division in Düsseldorf ruled on a counterclaim for revocation. The patent at issue relates to a lithographic printing plate original plate, and method for producing lithographic printing plate. According to the headnotes of the decision, the Court may extend procedural time periods under Rule 9.3(a), but only cautiously and in justified exceptional cases. An exceptional case typically arises when access to unredacted pleadings was initially restricted due to confidentiality protections, requiring that employees with relevant knowledge receive access so the party can develop strategy together with its representatives. The two-month period for filing a reply to a statement of defence that includes a counterclaim for revocation must ordinarily be extended upon request, as both the claimant and its representatives need this time to jointly develop a defence strategy based on all available facts. Similarly, parties must be able to reconcile their arguments on non-infringement with those on validity and possible claim amendments, particularly in their first substantive submission on validity, as required by due process and the right to be heard.